

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 3, 2026
8:30 a.m./1:30 p.m.

2. LUKE GADOW V. BRITTANY GADOW

23FL0468

On April 10, 2026, Petitioner filed a Request for Order (RFO) seeking child support and visitation orders. She filed her Income and Expense Declaration concurrently therewith. All required documents were served by mail on April 21st. Given that this is a post-judgment request, Petitioner filed a Declaration Regarding Address Verification on June 29th in accordance with Family Code § 215.

The parties attended Child Custody Recommending Counseling (CCRC) on May 1, 2026 and were able to reach some agreements. A report with the agreements and recommendations was prepared the same day and mailed to the parties on May 4th.

On June 29th, Petitioner filed and served Petitioner's Reply Declaration to CCRC.

Respondent has not filed a Responsive Declaration to Request for Order or an Income and Expense Declaration. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure "as an admission that the motion or other application is meritorious." El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served on Respondent. She had notice of the pending requests and chose not to file an opposition to the RFO. As such, the court finds good cause to treat his failure to do so as an admission that the claims made in the RFO are meritorious.

After reviewing the filings the court finds the agreements contained in the May 1, 2026 CCRC report to be in the best interests of the minors and they are hereby adopted as the orders of the court. The court is not adopting the recommendations contained in the CCRC report. Instead, the parties are ordered to follow a week on/week off parenting schedule with exchanges to occur on Mondays after school or 12:00pm if no school. The court is further ordering the custodial parent to make the children reasonably available for a FaceTime or other video call with the non-custodial parent upon mutually agreed upon times. The custodial parent shall not interfere with the call or prematurely terminate it. All future communications regarding co-parenting issues shall take place via the Talking Parents app.

The parties are ordered to appear to address the issue of child support. Respondent is ordered to bring with her a completed Income and Expense Declaration with the required supporting documents.

All prior orders not in conflict with this order remain in full force and effect.

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Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #2: AFTER REVIEWING THE FILINGS THE COURT FINDS THE AGREEMENTS CONTAINED IN THE MAY 1, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINORS AND THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT. THE COURT IS NOT ADOPTING THE RECOMMENDATIONS CONTAINED IN THE CCRC REPORT. INSTEAD, THE PARTIES ARE ORDERED TO FOLLOW A WEEK ON/WEEK OFF PARENTING SCHEDULE WITH EXCHANGES TO OCCUR ON MONDAYS AFTER SCHOOL OR 12:00PM IF NO SCHOOL. THE COURT IS FURTHER ORDERING THE CUSTODIAL PARENT TO MAKE THE CHILDREN REASONABLY AVAILABLE FOR A FACETIME OR OTHER VIDEO CALL WITH THE NON-CUSTODIAL PARENT UPON MUTUALLY AGREED UPON TIMES. THE CUSTODIAL PARENT SHALL NOT INTERFERE WITH THE CALL OR PREMATURELY TERMINATE IT. ALL FUTURE COMMUNICATIONS REGARDING CO-PARENTING ISSUES SHALL TAKE PLACE VIA THE TALKING PARENTS APP.

THE PARTIES ARE ORDERED TO APPEAR TO ADDRESS THE ISSUE OF CHILD SUPPORT. RESPONDENT IS ORDERED TO BRING WITH HER A COMPLETED INCOME AND EXPENSE DECLARATION WITH THE REQUIRED SUPPORTING DOCUMENTS.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON

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**THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE
8.05.07.**